

104	Godwin vs. American Blast Systems, Inc., 26-01553297	The unopposed application of attorney Nicholas Lee to appear pro hac vice on behalf of Defendants American Blast Systems, Inc. and American Blast System Payments LLC is GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40. <i>Moving attorney to give notice.</i>
105	Phelps vs. Hyundai Motor America, 25-01468078	<i>Off-calendar.</i>
106	Knight vs. Volt Management Corp, 24-01382559	<u>Motion to Compel Arbitration</u> Defendant Volt Management Corp.'s ("Volt") motion to compel arbitration of all of Plaintiff Yolanda Knight's claims and to stay the action is DENIED. Agreement to Arbitrate Here, it is undisputed that on August 6, 2021, as part of the onboarding process for her employment with Volt, Plaintiff executed the acknowledgment page of Volt's Employee Guide containing an Arbitration Agreement. (Allen-Garcia Decl. ¶ 9, Ex A.) The Arbitration Agreement provides, in relevant part that: "any disputes arising out of or related to my employment with and/or termination from Volt, my assignment with any Volt client and/or end of such assignment, including privacy claims shall be settled by final and binding arbitration pursuant to the Federal Arbitration Act. I understand and agree that Volt's employees/agents, Volt's clients, and their employees/agents are third-party beneficiaries to this agreement." (Id., Ex. A.) <i>The FAA</i> The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a "liberal federal policy favoring arbitration," and the "fundamental principle that arbitration is a matter of

		contract.” (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339 (“<i>Concepcion</i>”).) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (<i>Concepcion, supra</i>, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) Defendant has demonstrated the existence of a valid arbitration agreement that encompasses all of Plaintiff’s employment-related claims. Plaintiff does not dispute the agreement’s validity or scope but contends her claims fall outside its reach under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”). <i>The EFAA</i> The FAA was amended in 2022 to include what is known as the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act. (See, <i>Doe v. Second Street Corp.</i> (2024) 105 Cal.App.5th 552, 564-565.) One of the goals of the EFAA is to protect the victims of sexual assault and/or sexual harassment from having to arbitrate their
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		claims in what could be considered a less fair forum than the courts with a jury of their peers. (<i>Id.</i>, at 565-566.) The EFAA provides: "Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C.A. § 402(a).) The EFAA defines "sexual harassment dispute" to mean "a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law." (9 U.S.C., § 401(4).) California law protects against harassment because of sex, including sexual harassment, gender harassment, and harassment based on pregnancy. (Gov. Code, § 12940(j)(4)(C).) The elements of a sexual harassment claim are: (i) plaintiff belongs to a protected group; (ii) plaintiff was subject to unwelcome sexual harassment; (iii) the harassment complained of was based on sex; (iv) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (v) respondeat superior. (<i>Fisher v. San Pedro Peninsula Hospital</i> (1989) 214 Cal.App.3d 590, 608.) Even "[a] single incident of severe harassment is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive work environment." (Gov. Code, § 12923(b).) "The factors that can be considered in evaluating the totality of the circumstances are: (1) the nature of the unwelcome sexual acts or works (generally, physical touching is
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		more offensive than unwelcome verbal abuse); (2) the frequency of the offensive encounters; (3) the total number of days over which all of the offensive conduct occurs; and (4) the context in which the sexually harassing conduct occurred.” (<i>Fisher v. San Pedro Peninsula Hospital</i> (1989) 214 Cal.App.3d 590, 610.) “Harassment” includes but is not limited to: (E) Verbal harassment, e.g., epithets, derogatory comments or slurs on a basis enumerated in the [FEHA]; (F) Physical harassment, e.g., assault, impeding or blocking movement, or any physical interference with normal work or movement, when directed at an individual on a basis enumerated in the Act; (G) Visual forms of harassment, e.g., derogatory posters, cartoons, or drawings on a basis enumerated in the Act; or (H) Sexual favors, e.g., unwanted sexual advances, which condition an employment benefit upon an exchange of sexual favors. [See also section 11034(f)(1).] (Cal. Code Regs., tit. 2, § 11019(b)(2)(A)-(D).) “[T]he prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex.” (<i>Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 277; see also <i>Liu v. Miniso Depot CA, Inc.</i> (2024) 105 Cal.App.5th 791, 796-797 (“<i>Liu</i>”) [sexual harassment based on comments about the plaintiff’s appearance as unattractive and “too skinny,” references to female employees as “little girls,” and that homosexuals were “creepy”]; <i>Landucci v. State Farm Ins. Co.</i> (N.D. Cal. 2014) 65 F.Supp.3d 694, 704-705 [finding excessive micro-managing and criticisms to which plaintiff’s male co-workers were not subject to be harassment].) “[I]t is the disparate treatment of an employee on the basis of sex—not the mere discussion of sex or use of vulgar language—that is the essence of a sexual harassment claim.” (<i>Lyle v. Warner</i>
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Brothers Television Productions, supra, 38 Cal.4th at p. 280.)

Applicable Pleading Standard

The Court must first determine whether the plaintiff alleges conduct constituting a sexual harassment dispute, so as to come within the EFAA and then decides whether the EFAA makes the arbitration agreement unenforceable as to the entirety of the pleading's claims. (*Ding v. Structure Therapeutics, Inc.* (N.D. Cal. 2025) 765 F.Supp.3d 897, 899.)

Federal district courts have reached different results as to the appropriate standard. Some have held the EFAA applies only where the plaintiff's sexual harassment related claims are capable of withstanding a motion to dismiss under Federal Rules of Civil Procedure, rule 12(b)(6) (28 U.S.C.). (See, e.g., *Yost v. Everyrealm, Inc.* (S.D.N.Y. 2023) 657 F.Supp.3d 563, 577, 586 [requiring a plaintiff's claim to meet the federal "plausibility" standard articulated in *Bell Atl. Corp. v. Twombly* (2007) 550 U.S. 544, 570 and *Ashcroft v. Iqbal* (2009) 556 U.S. 662, 678 in order to avoid arbitration via the EFAA].)

A claim is plausible when the plaintiff pleads facts that allow the court to draw the reasonable inference that the defendant is liable. (*Ashcroft v. Iqbal* (2009) 556 U.S. 662, 678.) The complaint must "contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." (*Ibid.*) A court disregards conclusory factual allegations and "draw[s] on its judicial experience and common sense" to determine whether a claim is plausible. (*Id.* at pp. 678-679; see also *Bell Atlantic Corp. v. Twombly* (2007) 550 U.S. 544, 555 [holding "a plaintiff's obligation . . . requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do"]; *Moss v. U.S. Secret Service* (9th Cir. 2009) 572 F.3d 962, 969 [citing *Twombly* and holding the non-conclusory "factual content," and reasonable inferences from that content, must be plausibly suggestive of a claim entitling the plaintiff to relief].)

		At least one district court has adopted instead the standard articulated in <i>Bell v. Hood</i> (1946) 327 U.S. 678, asking whether the alleged claim is “ ‘wholly insubstantial and frivolous’ or ‘appears to be immaterial and made solely for the purpose of obtaining jurisdiction.’ ” (<i>Diaz-Roa v. Hermes Law, P.C.</i> (S.D.N.Y. 2024) 757 F.Supp.3d 498, 542 [Congress intended in passing the EFAA only that “the conduct must be actually alleged and with sufficient specificity that the court is able to determine the law is applicable and that there is a real and nonfrivolous reason to believe that the conduct violates that law against sexual harassment”].) Although this Court is not aware of any published California decision that has definitively adopted a pleading standard, courts have recognized that several federal courts apply the plausibility standard when determining whether a plaintiff has adequately alleged a sexual-harassment dispute within the meaning of the EFAA. (See <i>Liu, supra</i>, 105 Cal.App.5th at pp. 801-802.) In <i>Quilala v. Securitas Security Services USA, Inc.</i> (2025) 117 Cal.App.5th 75, the court applied the plausibility standard without discussing whether it was required. (Id. at pp. 86-87 [concluding, “the trial court correctly determined that [the plaintiff’s] allegations stated a plausible claim of sexual harassment ... bringing the dispute within the scope of the EFAA”].) <i>Allegations in the Complaint</i> Plaintiff has met her burden under either the “plausibility” or “nonfrivolous” pleading standard, as the Complaint sufficiently alleges a claim for harassment based on sex. Plaintiff alleges she was subject to harassment based on her sex and pregnancy. (Compl., ¶ 47.) Plaintiff alleges that a few weeks before she was to start maternity leave, her direct supervisor stated she was not sure they would rehire Plaintiff after her maternity leave, and that “With the newborn, you’re gonna have a lot on her plate.” (Compl. ¶ 17.) Later, at a team meeting, Plaintiff’s supervisor addressed Plaintiff’s pregnancy to all of Plaintiff’s co-workers, and added “Hopefully we don’t see you next
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		Monday,” which Plaintiff alleges was an inappropriate way of alluding that Plaintiff’s supervisor was hoping Plaintiff would give birth soon and not be working for Defendants anymore. (Compl. ¶ 20.) Plaintiff also alleges that while Plaintiff was on maternity leave, Plaintiff’s supervisor admitted to one of Plaintiff’s co-workers that Plaintiff “won’t probably be coming back,” which Plaintiff contends confirms that Defendants intended to wrongfully terminate Plaintiff because of Plaintiff’s pregnancy. (Compl. ¶ 23.) When Plaintiff attempted to return after her maternity leave, she was told that there was not enough work and that she was no longer an employee as of the date she left for maternity leave. (Compl. ¶¶ 21-28.) Plaintiff alleges the conduct created a hostile work environment based on her sex, gender, pregnancy, and disability. (Compl., ¶ 36.) Although the allegations may ultimately prove insufficient to prevail on the merits, the Complaint plausibly alleges conduct directed at Plaintiff because of her pregnancy that, viewed collectively, could support a hostile-work-environment claim. At this stage, the Court is not deciding whether Plaintiff will ultimately prevail on her FEHA harassment claims, but only whether the Complaint sufficiently alleges a sexual-harassment dispute within the meaning of the EFAA. The inquiry into whether a working environment is hostile or abusive enough to be actionable is context-specific and often requires a nuanced assessment of the participants’ behavior and interactions that is difficult to undertake at the pleading stage. (<i>See Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 283; see also Gov. Code, § 12923, subd. (e) [“Harassment cases are rarely appropriate for disposition on summary judgment ... [because] hostile working environment cases involve issues ‘not determinable on paper’ ”].) While Defendant argues the EFAA does not apply to FEHA hostile work environment claims premised on pregnancy, California law expressly recognizes harassment based on
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		pregnancy as harassment “because of sex.” (Gov. Code, § 12940(j)(4)(C).) Because the EFAA applies to disputes relating to conduct alleged to constitute sexual harassment under applicable state law, Plaintiff’s pregnancy-based harassment allegations fall within the scope of the EFAA. <i>EFAA Applies to All Claims</i> Because Plaintiff has sufficiently alleged a sexual-harassment dispute within the meaning of the EFAA, the arbitration agreement is unenforceable as to the entire action, not merely the harassment claim. (See <i>Liu, supra</i>, 105 Cal.App.5th at pp. 802-807; <i>Doe v. Second Street Corp.</i> (2024) 105 Cal.App.5th 552, 559; <i>Casey v. Superior Court</i> (2025) 108 Cal.App.5th 575, 583; <i>Quilala v. Securitas Security Services USA, Inc.</i> (2025) 117 Cal.App.5th 75, 88-89.) Accordingly, the motion is DENIED. <u>Joinder</u> Defendants Mitchell International, Enlyte Group LLC, and Kelly Sedemund’s motion for joinder is GRANTED. However, the relief requested is DENIED for the same reasons discussed above. <i>Defendant Volt to give notice.</i>
107	Johnson vs. City of Laguna Beach, 24-01383346	Defendant City of Laguna Beach (“Defendant”) moves to compel Plaintiffs Charles William Johnson and Christine Jenna Cilano to appear in California for Orthopedic Independent Medical Examinations. Plaintiff opposes the motion. Pursuant to Code of Civil Procedure section 2032.220, “[i]n any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive. (2) The examination is conducted at a location within 75 miles of the residence of the examinee.” (Code Civ. Proc., § 2032.220, subd. (a).)